UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. Robert F Kennedy, JR, et al. , Defendant.	Case No.: CV-25-03367-PHX-SMB **MOTION FOR LEAVE TO FILE REDLINED AMENDED MOTION FOR PRELIMINARY INJUNCTION**

COMES NOW Plaintiff Kevin D. Turnage, pro se, and respectfully moves this Court for an order granting leave to file the redlined version of his Amended Motion for Preliminary Injunction (protective order) as Exhibit A. In support of this motion Plaintiff states as follows:

I. INTRODUCTION

Plaintiff originally filed an Amended Motion for Preliminary Injunction on December 2, 2025. Subsequent developments—including additional factual information, newly-available Ninth Circuit authority, and the need to revise the proposed protective order to comply with Local Rule 7.1(b)(3)—necessitate a modest amendment to that pleading. Plaintiff seeks the Court's permission to attach the redlined pleading as Exhibit A and to amend the original motion accordingly.

II. COMPLIANCE WITH LOCAL RULE 15.1

Local Rule 15.1 of the District of Arizona requires that a motion to amend a pleading (a) state the amendment sought, (b) identify the specific page and line numbers of the original pleading to be changed, (c) briefly explain the reason for the amendment, and (d) attach a copy of the proposed amended pleading marked with underlines for additions and strike-throughs for deletions. The attached redlined pleading (Exhibit A) satisfies each of these requirements.

III. REASONS FOR THE AMENDMENT

1. **Updated Factual Allegations** – The December 15, 2025 email from Defendant's counsel requesting an extension of the response deadline provides additional factual context that is material to Plaintiff's showing of retaliation. The redlined pleading incorporates this email and Plaintiff's refusal of the extension.
2. **Clarification of Legal Authority** – The Ninth Circuit's decision in Rosario-Fabregas v. United States, 833 F.3d 1342 (9th Cir. 2016) reaffirmed the constructive-suspension doctrine and remains controlling authority on the issue. Although this decision was already published prior to Plaintiff's original filing on December 2, 2025 [original motion, 12/02/2025], the amendment adds an explicit citation to ensure the Court can readily locate the precedent and to satisfy Local Rule 7.1(b)(3) by providing a fully supported proposed order. The citation does not introduce new authority but strengthens the record's completeness.
3. **Revision of the Proposed Protective Order** – The original proposed order contained the names of the parties, which is prohibited by Local Rule 7.1(b)(3).

The redlined pleading replaces that order with a redacted version that omits all party identifiers while preserving the substantive relief sought. The revised protective order is attached as Exhibit C.

4. **Inclusion of the Proposed Temporary Restraining Order** – Plaintiff also seeks a temporary restraining order pending a hearing on the preliminary injunction. The proposed TRO, which contains no party names or identifying information, is attached as Exhibit D.

IV. AGENCY'S FAILURE TO FILE A RESPONSIVE PLEADING

1. **Deadline missed.** Under Local Rule 7.2, Defendant was required to file a responsive pleading to Plaintiff's protective-order motion by December 9, 2025. The agency did not file any pleading by that date, nor did it obtain a court order extending the deadline.
2. **Effect on the case.** The failure to respond has left the matter without any opposition, creating a status-quo that is unfavorable to Plaintiff and contrary to the Court's interest in timely resolution of whistleblower retaliation claims.
3. **No prejudice from amendment.** Because Defendant has not filed any responsive pleading, the modest amendment—adding factual detail, updating Ninth-Circuit authority, and redacting the proposed orders—cannot prejudice the agency. In fact, the amendment clarifies the record and brings the pleading into compliance with Local Rule 7.1(b)(3).

V. REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Accept the attached redlined pleading as Exhibit A and grant leave to amend the Amended Motion for Preliminary Injunction filed on December 2, 2025;

2. Approve the revised proposed Protective Order attached as Exhibit C, which complies with Local Rule 7.1(b)(3) by omitting all party names;

3. Approve the revised proposed Temporary Restraining Order attached as Exhibit D, also redacted to contain no party identifiers; and

4. Grant such other and further relief as the Court deems just and proper.

VI. CERTIFICATE OF SERVICE

I hereby certify that on December 16, 2025 I electronically filed the foregoing Motion for Leave to File Redlined Amended Motion for Preliminary Injunction, together with all exhibits, in the CM/ECF system. All parties to this action are registered CM/ECF participants; therefore, electronic filing constitutes service pursuant to Local Rule 5.6(c)(1) of the District of Arizona.

Respectfully submitted,

/s/ Kevin D. Turnage

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Date: December 16, 2025

EXHIBITS

Exhibit A – Redlined version of the Amended Motion for Preliminary Injunction (underlines for additions, strike-throughs for deletions).

Exhibit B – Plaintiff's Affidavit.

Exhibit C – Revised Proposed Protective Order (contains no party names or identifying information).

Exhibit D – Revised Proposed Temporary Restraining Order (contains no party names or identifying information).

Exhibit E – Good Faith Certificate (*The certificate is attached as a separate PDF and is incorporated herein by reference. It contains the email correspondence dated December 1-2, 2025 and December 15, 2025 demonstrating the parties' meet-and-confer efforts.)*